

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                       |                                                            |                                     |                                                                                                                                                                                                                       |
|---------------------------------------------------------------------------------------|------------------------------------------------------------|-------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Will Jacobson                                                        | Team:<br>Squad #07                                         | CCRB Case #:<br>202311805           | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 11/15/2023 10:30 AM,<br>Wednesday, 11/15/2023 11:30 AM | Location of Incident:<br>§ 87(2)(b) § 87(2)(b)<br>Hospital | 18 Mo. SOL<br>5/15/2025             | Precinct:                                                                                                                                                                                                             |
| Date/Time CV Reported<br>Sat, 12/16/2023 3:11 AM                                      | CV Reported At:<br>CCRB                                    | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Sat, 12/16/2023 3:11 AM                                                                                                                                                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. PO Angel Estrella   | 02126  | 954781 | 052 PCT |
| 2. PO Mohammad Hossain | 24870  | 971095 | 052 PCT |
| 3. PO David Hervey     | 30919  | 965187 | 052 PCT |
| 4. PO Joshua Negron    | 01445  | 970734 | 052 PCT |

| Officer(s)              | Allegation                                                                                                       | Inv. Div. Recommendation   |
|-------------------------|------------------------------------------------------------------------------------------------------------------|----------------------------|
| A . PO Angel Estrella   | Abuse: Police Officer Angel Estrella entered § 87(2)(b) in the Bronx.                                            | A . Within NYPD Guidelines |
| B . PO Mohammad Hossain | Abuse: Police Officer Mohammad Hossain entered § 87(2)(b) in the Bronx.                                          | B . Within NYPD Guidelines |
| C . PO David Hervey     | Abuse: Police Officer David Hervey entered § 87(2)(b) in the Bronx.                                              | C . Within NYPD Guidelines |
| D . PO Joshua Negron    | Abuse: Police Officer Joshua Negron entered § 87(2)(b) in the Bronx.                                             | D . Within NYPD Guidelines |
| E . PO Angel Estrella   | Force: At § 87(2)(b) in the Bronx, Police Officer Angel Estrella used physical force against § 87(2)(b)          | E . Within NYPD Guidelines |
| F . PO Mohammad Hossain | Force: At § 87(2)(b) in the Bronx, Police Officer Mohammad Hossain used physical force against § 87(2)(b)        | F . Within NYPD Guidelines |
| G . PO Joshua Negron    | Force: At § 87(2)(b) in the Bronx, Police Officer Joshua Negron used physical force against § 87(2)(b)           | G . Within NYPD Guidelines |
| H . PO Angel Estrella   | Abuse: At § 87(2)(b) in the Bronx, Police Officer Angel Estrella made a sexually suggestive remark to § 87(2)(b) | H . Unfounded              |
| I . PO Angel Estrella   | Abuse: At § 87(2)(b) in the Bronx, Police Officer Angel Estrella damaged § 87(2)(b) property.                    | I . Within NYPD Guidelines |
| J . PO Mohammad Hossain | Abuse: At § 87(2)(b) in the Bronx, Police Officer Mohammad Hossain damaged § 87(2)(b) property.                  | J . Within NYPD Guidelines |

| Officer(s)              | Allegation                                                                                                         | Inv. Div. Recommendation   |
|-------------------------|--------------------------------------------------------------------------------------------------------------------|----------------------------|
| K . PO Joshua Negron    | Abuse: At § 87(2)(b) in the Bronx, Police Officer Joshua Negron damaged § 87(2)(b) property.                       | K . Within NYPD Guidelines |
| L . PO Angel Estrella   | Abuse: At § 87(2)(b) in the Bronx, Police Officer Angel Estrella forcibly removed § 87(2)(b) to the hospital.      | L . Within NYPD Guidelines |
| M . PO Mohammad Hossain | Abuse: At § 87(2)(b) in the Bronx, Police Officer Mohammad Hossain forcibly removed § 87(2)(b) to the hospital.    | M . Within NYPD Guidelines |
| N . PO David Hervey     | Abuse: At § 87(2)(b) in the Bronx, Police Officer David Hervey forcibly removed § 87(2)(b) to the hospital.        | N . Within NYPD Guidelines |
| O . PO Joshua Negron    | Abuse: At § 87(2)(b) in the Bronx, Police Officer Joshua Negron forcibly removed § 87(2)(b) to the hospital.       | O . Within NYPD Guidelines |
| P . PO Angel Estrella   | Abuse: At § 87(2)(b) Hospital, Police Officer Angel Estrella made a sexually suggestive gesture towards § 87(2)(b) | P . Unable to Determine    |
| Q . PO Angel Estrella   | Force: At § 87(2)(b) Hospital, Police Officer Angel Estrella used physical force against § 87(2)(b)                | Q . Within NYPD Guidelines |
| R . PO Mohammad Hossain | Force: At § 87(2)(b) Hospital, Police Officer Mohammad Hossain used physical force against § 87(2)(b)              | R . Within NYPD Guidelines |
| S . PO Angel Estrella   | Abuse: At § 87(2)(b) Hospital, Police Officer Angel Estrella made a sexually suggestive remark to § 87(2)(b)       | S . Substantiated          |
| § 87(2)(g), § 87(4-b)   |                                                                                                                    |                            |
| § 87(2)(g), § 87(4-b)   |                                                                                                                    |                            |
| § 87(2)(g), § 87(4-b)   |                                                                                                                    |                            |
| § 87(2)(g), § 87(4-b)   |                                                                                                                    |                            |

### Case Summary

On December 16, 2023, § 87(2)(b) filed this complaint with the CCRB online.

On November 15, 2023, at approximately 10:30 am, in response to a 911 call, Police Officers Angel Estrella, Mohammad Hossain, David Hervey, and Joshua Negron, all of the 52<sup>nd</sup> Precinct, entered § 87(2)(b) apartment at § 87(2)(b) in the Bronx (Allegations A-D: Abuse of authority- Entry of premises, within NYPD guidelines). PO Estrella, PO Hossain, and PO Negron all pushed down on § 87(2)(b) at he sat in his bed in order to handcuff him (Allegations E-G: Force-physical force, within NYPD guidelines). PO Estrella allegedly moaned sexually while handcuffing him (Allegation H: Abuse of authority- Verbal sexual harassment, unfounded). PO Estrella, PO Hossain, and PO Negron's force broke part of § 87(2)(b) bed frame (Allegations I-K: Abuse of authority- Property damaged, within NYPD guidelines). The officers then escorted § 87(2)(b) to an ambulance, where he was subsequently taken to § 87(2)(b) Hospital (Allegations L-O: Abuse of authority- Forcible removal to hospital, within NYPD guidelines).

While at § 87(2)(b) Hospital, § 87(2)(b) PO Estrella allegedly made sexual facial gestures at § 87(2)(b) (Allegation P: Abuse of authority- Sexually suggestive gesture, unable to determine). PO Estrella and PO Hossain both pushed § 87(2)(b) into his chair in the waiting room when he stood up (Allegations Q & R: Force-physical force, within NYPD guidelines). PO Estrella told § 87(2)(b) that he was gay, and that § 87(2)(b) was looking fine (Allegation S: Abuse of authority- Verbal sexual harassment, substantiated). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

The investigation obtained BWC from PO Estrella, PO Negron, PO Hervey, and PO Hossain, relevant portions of which will be discussed below (BR 1 – 6).

### Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Angel Estrella entered § 87(2)(b) in the Bronx.

Allegation (B) Abuse of Authority: Police Officer Mohammad Hossain entered § 87(2)(b) in the Bronx.

Allegation (C) Abuse of Authority: Police Officer David Hervey entered § 87(2)(b) in the Bronx.

Allegation (D) Abuse of Authority: Police Officer Joshua Negron entered § 87(2)(b) in the Bronx.

Allegation (E) Force: At § 87(2)(b) in the Bronx, Police Officer Angel Estrella used physical force against § 87(2)(b).

Allegation (F) Force: At § 87(2)(b) in the Bronx, Police Officer Mohammad Hossain used physical force against § 87(2)(b).

Allegation (G) Force: At § 87(2)(b) in the Bronx, Police Officer Joshua Negron used physical force against § 87(2)(b).

Allegation (H) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Angel Estrella made a sexually suggestive remark to § 87(2)(b).

Allegation (I) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Angel Estrella damaged § 87(2)(b) property.

Allegation (J) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Mohammad Hossain damaged § 87(2)(b) property.

**Allegation (K) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Joshua Negrón damaged § 87(2)(b) property.**  
**Allegation (L) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Angel Estrella forcibly removed § 87(2)(b) to the hospital.**  
**Allegation (M) Abuse of Authority: Police Officer Mohammad Hossain forcibly removed § 87(2)(b) to the hospital.**  
**Allegation (N) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer David Hervey forcibly removed § 87(2)(b) to the hospital.**  
**Allegation (O) Abuse of Authority: At § 87(2)(b) in the Bronx, Police Officer Joshua Negrón forcibly removed § 87(2)(b) to the hospital.**

§ 87(2)(b) (BR 7) stated that he lives in a supportive housing program for veterans called the § 87(2)(b). On November 15, 2023, he got into an argument with his case worker, § 87(2)(b) because he felt emasculated by something she did that triggered him. § 87(2)(b) called the police, and he left the office and went back to his apartment on the § 87(2)(b) floor. Officers and EMS came up to his front door with § 87(2)(b) and officers persuaded him to come to the hospital with them. He refused. PO Estrella did most of the talking from the doorway. To get everyone to leave, he stripped himself of all his clothing so the officers would know he had no weapons on him. He announced that he was going to sleep and then went onto his bed, which is out of view from the doorway.

PO Estrella, PO Hervey, PO Negrón, and PO Hossain then entered his apartment and approached him as he lay naked, face up, on his bed. They told him to turn around before grabbing both of his arms and getting him to face his bed. § 87(2)(b) did not resist and allowed officers to flip him over. While he was face-down on the bed, he heard PO Estrella moan in a lustful manner, and knew it was him because he had just heard his voice. The officer pushed § 87(2)(b) down further into his mattress, even though he lay still. The pushing lasted a few seconds, before officers handcuffed him. This pushing resulted in planks from his bed frame breaking. The officers put clothes on § 87(2)(b) and escorted him to the elevator and out to the street, where PO Estrella escorted him into the back of an ambulance to § 87(2)(b) Hospital.

§ 87(2)(b) provided two photos to the investigation showing his damaged wooden bed frame (BR 8 – 9).

§ 87(2)(b) (BR 10) stated that § 87(2)(b) had been acting more manic and aggressive than usual in the weeks leading up to this date, including exposing himself to employees in the building. § 87(2)(b) was irate, screaming, and threatening to have § 87(2)(b) fired. He was not acting lucidly and made delusional, nonsensical statements. § 87(2)(b) believed he may have ingested a combination of substances and medication. He did not make any specific threats of harm but made comments like “You watch and see what’s going to happen to you.” § 87(2)(b) said, “EDP me,” to § 87(2)(b) and called 911 himself before hanging up. A dispatcher called § 87(2)(b) back and she told police and first responders to come to the scene. She told EMS and the police, when they arrived, that § 87(2)(b) needed to be evaluated, and she wanted them to take his bloodwork to see if he was taking his medication.

In 911 audio (BR 11), § 87(2)(b) tells the operator that she needs medical personnel at the location because § 87(2)(b) is having a psychotic break. He is verbally violent only, and there are no weapons or injuries. § 87(2)(b) says she is not in immediate danger now.

PO Estrella (BR 12) could not recall any information from the 911 job he responded to apart from it involving an EDP. He recognized the building address as housing for emotionally disturbed



veterans. Upon coming to § 87(2)(b) doorway, PO Estrella observed him talking nonsensically and pacing around his room, which made him concerned that he could grab a knife or any weapon and run towards the officers. PO Estrella asked EMS if it was necessary for § 87(2)(b) to go to the hospital and they said yes. PO Estrella decided to enter the apartment after § 87(2)(b) started taking all his clothes off. He wanted to tactically make sure § 87(2)(b) had no weapons on him or near him.

PO Estrella grabbed § 87(2)(b) right arm, and § 87(2)(b) passively resisted by using dead weight and moving around aimlessly, making the officers work to handcuff him. While restraining § 87(2)(b) PO Estrella heard the bed make a noise and realized it broke, although he did not do anything purposefully to damage the bed. It was simply weight pressure that broke it. He never moaned in a sexually suggestive manner while handcuffing § 87(2)(b). He did not recall making any noises.

PO Estrella's BWC (BR 13) shows him and PO Hossain entering the lobby of the § 87(2)(b) building and speaking to three EMS personnel. At 2:24, one explains that § 87(2)(b) is possibly off his medication, exhibiting erratic, aggressive behavior, and refusing to speak to EMS, so they cannot make any determination about what is going on with him. § 87(2)(b) also has issues with substance abuse. He has not been violent but has been verbally aggressive towards female staff members. A staff member adds that he is making commissary threats, such as "you're going to make me do this to you." He also made verbal threats to kill people a few days prior, and his behavior has escalated in the last few days. PO Estrella, PO Hossain, EMS, and staff members come to § 87(2)(b) doorway. PO Estrella asks him what is going on today as § 87(2)(b) sits in his chair at the other end of his apartment, in plain view of the door. § 87(2)(b) answers briefly but then ignores PO Estrella. A female EMT tries to engage § 87(2)(b) to no avail. At 8:53, an EMT asks § 87(2)(b) if they can check his vitals and he does not answer. § 87(2)(b) says he is going to move away from the window in case anyone says he is suicidal. He lays down in his bed, where only his head is visible from the doorway. At 9:54, PO Estrella says to an EMT, "He's gonna go to the hospital, right?" She nods her head in affirmative. EMS personnel and PO Estrella plead with § 87(2)(b) to get evaluated for about ten minutes and he continuously refuses. At 22:19, § 87(2)(b) begins stripping his clothing. He tells them he is going to bed because he likes sleeping in the nude. PO Estrella asks him to come over to where he is and he says no. The officers all put on gloves.

At 24:45, PO Estrella walks into the apartment as PO Hossain, PO Hervey, and PO Negrón follow him inside. At 24:52, PO Estrella grabs § 87(2)(b) left arm and sits him up in the bed, before turning him to face his bed. He and PO Negrón place his hands behind his back and handcuff him. At 25:22, § 87(2)(b) leans over to sit up and PO Estrella and PO Negrón push him back into the bed. § 87(2)(b) repeatedly leans upwards, and they push him back down. § 87(2)(b) says they are breaking his bed as PO Estrella tells him to stay still. At 25:55, the officers sit him up and clothe him before escorting him outside to an ambulance. No moaning occurs while the officers handcuff § 87(2)(b).

PO Negrón's BWC is consistent with PO Estrella's BWC (BR 14).

PO Hossain's BWC (BR 15) is consistent with that of the other officers, with the following addition: PO Hossain helps handcuff § 87(2)(b).

§ 87(2)(a) – PHL 18(6)

§ 87(2)(a) – PHL It also states that NYPD was requested by EMS and that § 87(2)(b) was noncompliant with the assessment. Medical complaints or findings are also said to be apparent that require medical evaluation, and that the call type matched the presenting problem. Upon arrival, EMS found § 87(2)(b) alert with decisional capacity, and that his case manager stated he was irate, verbally aggressive, hostile, making threats and acting paranoid for three days. Because § 87(2)(b) refused vitals, and the crew was unable to assess him properly, he had to be restrained by the police.

Medical records § 87(2)(b) state that a doctor found § 87(2)(b) to be loud, intrusive, angry with staff, and a potential danger due to being possibly intoxicated, which led him to be held for observation § 87(2)(a) – PHL 18(6)

A request for an AIDED report yielded negative results (**BR 18**).

Patrol Guide Procedure 216-01 (BR 19) defines an AIDED case as any occurrence coming to the attention of a uniformed member of service which required that a person other than a prisoner receive medical aid or assistance because such person is mentally ill. Uniformed members of service shall cooperate with ambulance and hospital personnel in every reasonable manner.

Patrol Guide Procedure 221-01 (BR 20) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or when it is reasonable to place a person in custody or to prevent escape from custody. In determining whether the use of force is reasonable, members of the service should consider the nature and severity of the crime and circumstances, actions taken by the subject, duration of the action immediacy of the perceived threat or harm to the subject, and whether the subject is actively resisting custody, among other factors.

Patrol Guide Procedure 221-13 (BR 21) defines an emotionally disturbed person as someone who appears mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others.

People v. Rodriguez 77 A.D. 3d 280 (BR 22) states that entry into a home is permissible without a warrant if law enforcement officers reasonably believe that emergency assistance is needed.

Onderdonk v. State 170 Misc. 2d 155 (BR 23) dictates that police officers may damage property only when it is reasonably necessary to carry out their police duties.

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] It is therefore recommended that **Allegations A, B, C, and D** be closed as **within NYPD guidelines**.

PO Estrella and PO Negron pushed § 87(2)(b) so that he would face the bed as they handcuffed him with PO Hossain's assistance. § 87(2)(b) had resisted the officers by dropping his body weight and shifting around slightly in his bed. Additionally, the officers had to push him back down into his bed when he repeatedly sat up in order to evade them. § 87(2)(g)

§ 87(2)(g)  
§ 87(2)(b) had refused to cooperate with first responders for over twenty minutes before they detained him with force. Additionally, § 87(2)(b) at this point, had been suspected of being under the influence of a mixture of narcotics and made possibly threatening statements. § 87(2)(g)

It is therefore recommended that **Allegations E, F, and G** be closed as **within NYPD guidelines**.

BWC comprehensively shows that PO Estrella did not moan while handcuffing § 87(2)(b). It is therefore recommended that **Allegation H** be closed as **unfounded**.

§ 87(2)(g) PO Estrella admitted that he heard § 87(2)(b) bed frame snap while he pushed down on him to affect his handcuffing. § 87(2)(g) It is therefore recommended that **Allegations I, J, and K** be closed as **within NYPD guidelines**.

As shown on BWC, EMS personnel told police officers on scene that they wanted § 87(2)(b) to go to the hospital to be evaluated as per § 87(2)(b) request. § 87(2)(g) It is therefore recommended that **Allegations L, M, N, and O** be closed as **within NYPD guidelines**.

**Allegation (P) Abuse of Authority: At § 87(2)(b) Hospital, Police Officer Angel Estrella made a sexually suggestive gesture towards § 87(2)(b)**

§ 87(2)(b) (BR 7) stated that while in the waiting room at § 87(2)(b) Hospital, PO Estrella batted his eyes, and licked and puckered his lips at § 87(2)(b) as if he was a “piece of candy.”

PO Estrella (BR 12) denied batting his eyes with sexual intention at § 87(2)(b) and could not recall puckering or licking his lips while watching him. He had to watch § 87(2)(b) closely in the hospital to ensure that he did not flee custody. Since § 87(2)(b) had been walking around the lobby and looking towards the door, he looked him up and down, but not sexually.

PO Hossain’s second BWC activation (BR 24) depicts him and PO Estrella watching § 87(2)(b) as they wait for § 87(2)(b) staff to admit § 87(2)(b) for treatment. While his BWC depicts the entirety of their wait, with his camera trained on PO Estrella for most of the video, there are moments where PO Hossain moves so that PO Estrella’s face is out of view. At 18:07, PO Estrella raises his eyebrows and blinks as he looks at § 87(2)(b). § 87(2)(b) says PO Estrella cannot keep his eyes off him. At 18:27, he tells PO Estrella to turn around and PO Estrella says he will not. § 87(2)(b) says PO Estrella is probably gay. PO Estrella continues to look at him. At 19:25, § 87(2)(b) says that PO Estrella is getting him naked with his eyes and cannot stop looking at him up and down. PO Estrella continues to look at him. BWC never captures PO Estrella licking or puckering his lips.

BWC does not comprehensively capture PO Estrella’s face as he interacts with § 87(2)(b) in the hospital waiting room. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation P** be closed as **unable to determine**.

**Allegation (Q) Force: At § 87(2)(b) Hospital, Police Officer Angel Estrella used physical force against § 87(2)(b)**

**Allegation (R) Force: At § 87(2)(b) Hospital, Police Officer Mohammad Hossain used physical force against § 87(2)(b)**

§ 87(2)(b) (BR 7) stated that at one point while he was in the waiting room, he stood up, but PO Estrella grabbed one of his shoulders and pushed him back down into his chair.

PO Estrella (BR 13) stated that he had to put his hands on § 87(2)(b) to make sure that he did not escape the location, which it seemed he might do due to § 87(2)(b) walking around the lobby and looking towards the door.

At 1:04:27 of PO Estrella's BWC (BR 14), § 87(2)(b) asks PO Estrella to retrieve his social security number and PO Estrella does not answer. At 1:04:35, § 87(2)(b) stands up and says he will get it himself. PO Estrella gently places his left hand on § 87(2)(b) upper chest and pushes him back towards the chair. At 01:19:04 § 87(2)(b) asks PO Estrella if he can move to another seat. He stands up and walks around. At 01:19:30, PO Estrella puts his hand lightly on § 87(2)(b) chest and tells him to pick a seat. § 87(2)(b) continues to wander. At 01:19:56, § 87(2)(b) walks in front of the EMT and PO Estrella places his left hand on § 87(2)(b) chest and his right hand by § 87(2)(b) left shoulder, pushing him back into the chair. § 87(2)(b) stands up two more times and PO Estrella puts his hand on his chest to get him to sit back down both times. PO Hossain lightly places his left hand on § 87(2)(b) shoulder to guide him back into his chair.

Patrol Guide Procedure 221-01 (BR 20) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or when it is reasonable to place a person in custody or to prevent escape from custody. In determining whether the use of force is reasonable, members of the service should consider the nature and severity of the crime and circumstances, actions taken by the subject, duration of the action immediacy of the perceived threat or harm to the subject, and whether the subject is actively resisting custody, among other factors.

PO Estrella and PO Hossain were still in custody of § 87(2)(b) as they waited for medical personnel to admit him for treatment. § 87(2)(g)

It is therefore recommended that **Allegations Q and R** be closed as within **NYPD guidelines**.

**Allegation (S) Abuse of Authority: At § 87(2)(b) Hospital, Police Officer Angel Estrella made a sexually suggestive remark to § 87(2)(b) :-**

§ 87(2)(b) (BR 7) stated that at § 87(2)(b) Hospital, PO Estrella admitted to him that he was a homosexual. This came after he confronted PO Estrella for the way he was looking at him for moaning over him while he was naked.



PO Estrella (BR 12) stated that he said to § 87(2)(b) “I admit it, I’m a homosexual, and you looking fine” after listening to § 87(2)(b) talk to him for almost two hours, antagonizing him and harping on his perceived sexuality. He had been calling him gay before this. PO Estrella grew frustrated and annoyed with § 87(2)(b) prior to making this statement and typically has a lot of patience. He did not make this comment to sexually suggest a relationship with § 87(2)(b). The law enforcement purpose of this comment was to try and keep § 87(2)(b) calm and see if it would change his negative demeanor. He could not recall if making this comment led to § 87(2)(b) changing the subject, but § 87(2)(b) did say something like “a-ha” in response.

At 21:16 of PO Hossain’s second BWC (BR 25), as PO Estrella pushes him back in the chair, § 87(2)(b) calls PO Estrella a dominatrix and a faggot. He then says, “Wish you could suck my dick or suck my nipples, you faggot. Every time you do some homosexual act, God’s throne starts to shake.” PO Estrella tells him he is losing his patience. At 24:00, § 87(2)(b) says to PO Estrella, “Go suck a dick, you’re used to that shit anyway.” § 87(2)(b) yells and says he will give PO Estrella a reason to put handcuffs on him the next time he comes to his building. At 31:30, § 87(2)(b) calls PO Estrella a “faggot” and a homosexual. He says he can tell from his body language. At 31:32, PO Estrella says “alright, I admit it, I’m a homosexual. I like men.” § 87(2)(b) says, “You see? What did I tell you? He eyeing me and all like this.” At 32:02, PO Estrella says, “Of course, I gotta eye you. You lookin’ fine.” § 87(2)(b) says, “You’ve been sexually harassing me since you’ve been standing here and looking at me.” PO Estrella says he must watch him to make sure he does not walk out.

PO Estrella’s BWC (BR 13) is consistent with PO Hossain’s.

Patrol Guide Procedure 200-02 (BR 26) states that members-of-service pledge to maintain a higher standard of integrity than is generally expected of others because so much is expected of them. Members of service should respect the dignity of each individual and render their services with courtesy and civility.

In NYPD Disciplinary Court Case Number 2015-15012 (BR 27), an officer was found guilty of making a discourteous statement when the statement served no legitimate purpose but to belittle.

Administrative Guide 304-06 (BR 28) prohibits conduct including using discourteous or disrespectful remarks regarding another person’s gender, including a person’s gender identity, self-image, appearance, behavior, or expression.

§ 87(2)(g)  
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\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_, it is therefore recommended that  
**Allegation S be substantiated.**

§ 87(2)(g), § 87(4-b)  
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\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_

[REDACTED]  
 [REDACTED]  
 [REDACTED]  
 [REDACTED]  
 [REDACTED]  
 [REDACTED]

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- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 29).
- PO Estrella has been a member of service for ten years and has been a subject in one CCRB complaint and two allegations, none of which were substantiated.
- PO Hossain has been a member of service for three years and this is the first complaint to which he has been a subject.
- PO Hervey has been a member of service for six years and has been a subject in one CCRB complaint and one allegation, which was not substantiated.
- PO Negron has been a member of service for three years and has been a subject in one CCRB complaint and one allegation, which was not substantiated.

- This complaint was not suitable for mediation.
- As of May, 22, 2024, no Notice of Claim has been filed in regards to this incident (**BR 30**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

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Squad No.: 7

|               |                      |                      |                  |
|---------------|----------------------|----------------------|------------------|
| Investigator: | <u>Will Jacobson</u> | <u>Inv. Jacobson</u> | <u>5/21/2024</u> |
|               | Signature            | Print Title & Name   | Date             |

|  |                              |                     |
|--|------------------------------|---------------------|
|  | <u>Manager Vanessa Rosen</u> | <u>May 21, 2024</u> |
|  | Print Title & Name           | Date                |

|               |           |                    |         |
|---------------|-----------|--------------------|---------|
| Squad Leader: | <u></u>   | <u></u>            | <u></u> |
|               | Signature | Print Title & Name | Date    |

|           |           |                    |         |
|-----------|-----------|--------------------|---------|
| Reviewer: | <u></u>   | <u></u>            | <u></u> |
|           | Signature | Print Title & Name | Date    |